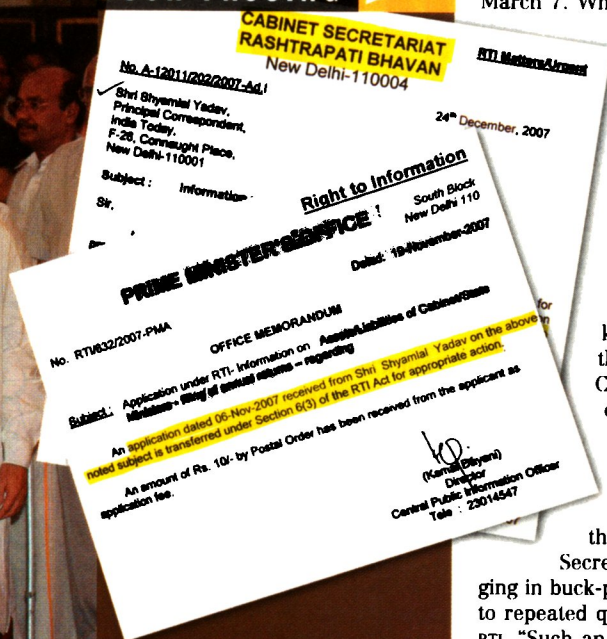




Despite the prime minister's claim of transparency, efforts to get information under the RTI Act are often stonewalled

The two offices are situated just a stone's throw from each other. But for any one trying to do business with either, they couldn't be further apart. The replies that were received from each office were sent to the other following which the secretariat wrote on December 24 that "the matter is under consideration of the competent authority and the information/reply

BUCK-PASSING >



■ "You are advised to contact the CPIO, Cabinet Secretariat for further information in the matter."
Response from PMO dated Nov 19, 2007

■ "The information asked for pertains to the PMO and the Cabinet Secretariat is not directly connected with the subject matter."
Response from Cab Sec dated Nov 26, 2007

■ "The matter is under consideration and information will be sent to you in due course."
Response from Cab Sec on Dec 24, 2007

will be sent to you in due course." Nothing happened for nearly two months. On February 1, we sent a reminder to the secretariat requesting it to forward the information as soon as possible. A copy of this letter was endorsed to the appellate authority as

well. A second reminder was sent on March 7. When that too went unanswered, a third reminder was sent asking if there was a "stipulated time frame to reply to such requests". Nearly four months had elapsed, though under the RTI Act it is mandatory to reply to queries within a month.

The next door to be knocked on was that of the Central Information Commission (CIC), which oversees the implementation of the RTI Act. On March 17, this magazine wrote to the CIC saying that both the PMO and the Cabinet Secretariat have been indulging in buck-passing and not replying to repeated queries raised under the RTI. "Such an attitude will defeat the very purpose of the RTI Act. When high offices like the PMO and the Cabinet Secretariat show such an approach, it can only be deduced how the lower-level offices will deal with requests to RTI applications," we wrote to the CIC. There is no reply forthcoming from the CIC either, which gives the feeling that it would be foolish to expect the queries to be answered during the tenure of this government.

The prime minister's brave words about the declaration of assets by ministers is just words and nothing else. The Representation of the People Act was amended in 2004 to make it compulsory for all legislators to declare their assets and liabilities within 90 days of being elected. Strangely, there is no such provision for ministers. That ministers treat with contempt directives from the PMO—issued via the Cabinet Secretariat seeking annual declaration of assets—is indicative of the sheer helplessness of the PMO in a coalition setup where every partner, even a minor one, is a major bully.

If this is the actual level of transparency at the highest levels where leaders are expected to be more accountable, the less said the better about politics and those who practise it at the lower levels. ■



The Cabinet Secretary kept tossing the ball to the PMO, which lobbed it back.

K.M.CHANDRASHEKHAR, CAB SECY

The CIC, which oversees the implementation of the RTI, is yet to list our appeal.

W.HABIBULLAH, CIC

